



File No.: EXP202313227 (PS/00505/2023)

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the claimant) submitted a complaint to the Spanish Agency for Data Protection on August 11, 2023. The complaint is directed against ASYMECO, S.A. with NIF A16018269 (hereinafter, ASYMECO). The reasons on which the complaint is based are as follows: The claimant, an employee of the complained company, expresses that (...) sends personal data or communications of clients to the claimant's personal WhatsApp.

The claimant indicates that the aforementioned (...) has already been warned several times not to send such client data to their personal WhatsApp, and that they do not authorize the use of their personal mobile phone or personal accounts as means for work.

Along with the complaint, the following is provided:

- a) email from the claimant from the corporate account to (...) of the company regarding a client, dated July 22, 2023;
- b) response email (...) indicating that they left a message yesterday afternoon and do not understand why they are responding at noon. Additionally, they express their disagreement and anger regarding the treatment given to the client, dated July 22, 2023;
- c) email from the claimant from the corporate account responding to (...) of the company warning that their personal phone and WhatsApp are not work tools and that (...), moreover, they contact them outside of working hours, dated July 22, 2023;
- d) email from the claimant from their personal account to the company regarding a problem with their payroll, dated December 9, 2022;
- e) response from the company indicating that the corporate email account of the company is not the most appropriate means for personal matters and that they have the phone (...) to communicate directly with them, dated December 9, 2022;
- f) images of the WhatsApp conversation between the claimant and (...), dated June 13 and 29, 2022, April 28, 2023, May 3, 2023, July 17 and 27, 2023. Transcribes the audios (...).

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SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to ASYMECO for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on October 2, 2023, as evidenced by the acknowledgment of receipt in the file.

On November 2, 2023, a response was received by this Agency indicating the following:

“FIRST.- First of all, it should be noted that the use of WhatsApp for conversations between the employer and the claimant, currently a former employee of the company, is a work tool and a usual communication channel of the company with employees for decades, which each and every one has accepted as a useful, practical, and agile means between the parties.

- This has been the case since the beginning of the employment relationship with the claimant, having their prior consent; in fact, any communication from the employee to the employer has always been through this channel, with both parties mutually agreeing to this communication.
- It is important to highlight that this does not involve the employer including the claimant in any WhatsApp group without their consent, which could have violated data protection law.

- The audios that have been forwarded do not constitute any violation of protection and were only forwarded in the trust existing between both interlocutors and to illustrate the complaints at that moment expressed by the client.
- No communications have been sent outside of working hours requiring any express and precise communication at that moment; if at any time something has been sent outside of working hours (of which I am unaware), it has only been for informational purposes and to take it into account at the beginning of the next working day.
- The claimant has not been requested to communicate with any client through their mobile device or any social network.
- All communications with clients are through the corporate email of the company and via telephone (from the company phone).
- At no time has there been any sanction or reproach from the company to the claimant if any communication has not been answered.”

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 3/25

- Nor has the disconnection or rest of the worker who faithfully complied with their schedule been violated, without delaying a single minute of their free time for any requirement from the company.
- All workers are witnesses to the aforementioned and to the communications that have taken place between the parties with the consent that this is a customary system of daily communication that has been in place for decades.
- The WhatsApp histories of all workers, without exception, are available to this agency under the same terms stated.

SECOND.- LONG-STANDING CUSTOM OF PROFESSIONAL OFFICE COMMUNICATION BETWEEN EMPLOYEES AND EMPLOYER

All employees, for reasons of economy, custom, and efficiency in communications, have communicated with the Legal Representative via WhatsApp for the past thirty years, which everyone does and consents to, especially since on most days and mornings, the representative is immersed in judicial proceedings and therefore cannot attend to doubts or phone inquiries for several hours. This is why all employees, without exception, communicate with him through this channel for their convenience and in order to resolve doubts at that moment.

These communications have become "essential" for proper internal communication, as there are different workplaces and the employer is usually not present at the workplace where the claiming party provided their services.

THIRD.- THE CLAIMING PARTY ACTS AGAINST THEIR OWN ACTIONS

It does not seem logical that an employee, in this case the claiming party, initiates conversations that "interest" them, whether to negotiate working conditions, convey issues about colleagues, or discuss any personal matter, and then reproaches the employer for addressing them through this channel that they themselves initiated.

It can be verified in the WhatsApp history that the claiming party initiates the conversations. They also use WhatsApp for their requests and personal work-related matters:

FOURTH.- RETALIATION/ IMPURE MOTIVE OF THE CLAIMING PARTY / LABOR CONFLICT

This undoubtedly responds to retaliation for a labor conflict, and this channel is being used by the worker for undoubtedly impure purposes. In fact, this worker is no longer part of the company's staff as they submitted a voluntary resignation without even respecting the legally required notice period, to the detriment of the company.

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It is a false complaint that contains inaccurate and manipulated facts. The worker had filed a claim for payment against the company which was rendered ineffective.

Furthermore, they submitted a voluntary resignation without even respecting the notice period owed to the company based on their length of service.

Therefore, this is undoubtedly a conflict generated exclusively by the claiming party, due to the fact that they have been informed of customer complaints regarding management, which has now angered the claiming party.

FIFTH.- THERE IS NO VIOLATION OF DATA PROTECTION LAW

No dissemination of any message has been made by the employer because they are also the first interested party in the confidentiality of conversations between employees and themselves, unless the claiming party has done so, a circumstance of which we are unaware.

The claiming party has suffered no detriment.

And the entire claim is based on an impure motive as previously stated.

THIRD: On November 9, 2023, the claiming party again directed a letter to this Agency, in which they report that, during that week, they have again received messages about work matters from a worker at ASYMECO, despite no longer working at that company.

Along with this letter, they provide images of the WhatsApp conversation between the claiming party and the ASYMECO worker.

FOURTH: On November 11, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claiming party was admitted for processing.

FIFTH: According to the report collected from the AXESOR tool, the entity ASYMECO, S.A. is a microenterprise established in 1986, with a turnover of (...) euros in 2022.

SIXTH: On February 13, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against ASYMECO, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5 of that regulation, and for the alleged infringement of Article 32 of the GDPR, classified under Article 83.4 of that regulation, in which it was indicated that they had a period of ten days to present allegations.

This initiation agreement was notified to ASYMECO in accordance with the regulations established in Law 39/2015, of October 1, on Administrative Procedure.

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Common Administrative Procedure Law (LPACAP), was received on February 23, 2024, as evidenced by the acknowledgment of receipt in the file.

SEVENTH: On March 12, 2024, this Agency received, in due time and form, a written submission from ASYMECO in which it presented allegations against the initiation agreement, stating that it considered the content of its response to the transfer of the complaint to be fully valid, adding that the statements contained in the issued resolution are erroneous. Furthermore, according to ASYMECO, it was the complainant who initially started the communications through their own phone and using the WhatsApp application, as evidenced by the screenshots initially provided by this party.

EIGHTH: On June 13, 2024, the instructing body of the sanctioning procedure formulated a proposal for resolution, in which it proposes that the Director of the AEPD sanction ASYMECO, with NIF A16018269, for the infringement of Article 6.1 of the GDPR, classified under Article 83.5 of said regulation, with a fine of €5,000 (five thousand euros), and for the infringement of Article 32 of the GDPR, classified under Article 83.4 of said regulation; with a fine of €2,500 (two thousand five hundred

euros). This proposal for resolution, which was notified to ASYMECO in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was received on June 13, 2024, as evidenced by the acknowledgment of receipt in the file.

NINTH: On June 26, 2024, this Agency received, in due time and form, a written submission from ASYMECO in which it presented allegations against the proposal for resolution, which, in summary, ratified the arguments of the allegations against the initiation agreement and cited a precedent from this Agency, marked with number EXP202002690, in which a resolution of archiving was issued, in order to justify the inclusion in a WhatsApp group created for the purpose of using this communication channel for matters related to the employment contract.

From the actions carried out in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: In the screenshot from the WhatsApp application dated June 13, 2022, contained in the file (page 11), the following message is noted, addressed to the contact "(...)", with the following text: "... regarding using the mobile as I mentioned the other day while talking about another client, I do not want to use my personal mobile to have conversations with you about clients.

The mobile of Asymeco is available during my working hours, therefore it is the best way we have to send you messages and for you to see them before by email. It is true that it is not the fastest way to receive them."

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6/25

SECOND: In the screenshot from the WhatsApp application dated June 29, 2022, contained in the file (page 12), it is verified that a contact was shared by "(...)", which the complainant claims is from a client of the consultancy.

THIRD: On July 22, 2022, an email was sent by the complainant from the address (....)@asymeco.com to "Asymeco Madrid" "Laboral (...)", with the subject "(...)" and the following text:

"[...]

What cannot be is that after notifying you in writing SEVERAL TIMES and CLEARLY that MY PHONE and my WhatsApp are PERSONAL AND PRIVATE and that I do not want to use them for conversations with you about clients, AGAIN you send me messages about clients and expect me to respond

[...]

Or, if you are interested, the company can provide me with a company mobile with its own WhatsApp or Telegram account or whatever the company considers..."

FOURTH: In the screenshot from the WhatsApp application dated April 28, 2023, contained in the file (page 14), it is confirmed that three PDF documents named "INITIATION SANCTION FILE..." containing personal data of a client of ASYMECO were sent to the complainant from the contact "(...)". Subsequently, there is a response from the complainant to the sending of said documents with the following text:

"I have already told you several times that you should not send me client data to my personal phone. I need to know why you keep doing this.

I have responded to this via ASYMECO's email."

In response to this message, "(...)" sends an audio message whose transcribed content has been provided by the complainant along with the complaint:

"(...), well, I didn't remember when you had to go to the doctor. In any case, I am not sending you client data, these are important things for us. Just as you address my mobile for your issues, I can also address yours for work matters, I have told you this many times. You handle the phone at work, okay, with the work Wi-Fi. Therefore, it is an important means of communication. For you and for us. And not

only for what is convenient for you. Therefore, let's have a little bit of normality, a little bit of reciprocity. Not just for what we want.

[...]

In response to this message, the complainant again opposes "your use of my private phone as a work tool."

FIFTH: According to the images provided by the complainant, on July 17, 2023, and August 10, 2023, the contact "(...)" sent personal data of the company's clients to the complainant's mobile phone via the WhatsApp application, who states that they have addressed this issue with (...) from ASYMECO.

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7/25

SIXTH: On October 10, 2023, the claimant terminated the employment relationship with ASYMECO, according to the resolution of the termination recognition from the General Treasury of Social Security, provided by ASYMECO attached to its allegations regarding the initiation agreement.

SEVENTH: On November 9, 2023, the claimant informed this Agency that a person identifying as an employee of ASYMECO sent them a message on November 7, 2023, to inquire about "professional details related to a client"; as proof, they provided an image of a WhatsApp conversation.

EIGHTH: On March 12, 2024, ASYMECO submitted allegations to the initiation agreement in which it states that it has used the claimant's private mobile number to send communications containing client data from ASYMECO, asserting that "communication between them is perfectly valid and furthermore understands that the now-claimant, then an employee, has a general obligation of confidentiality regarding the processing of client data."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

Article 4.2 of the GDPR defines "processing" as:

"any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of making available, alignment, combination, restriction, erasure or destruction."

For its part, Article 4.7 of the GDPR defines the "data controller" or "controller" as:

"the natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of that processing are determined by Union or Member State law, the controller or the specific criteria for its designation may be provided for by Union or Member State law."

In this case, according to the provisions of Article 4.2 of the GDPR, there is evidence of the processing of personal data, since ASYMECO, as the data controller, carries out the collection, storage, and communication of, among others, the following personal data of natural persons: name, surname, and phone number of its employees, as well as various personal data of its clients, among other processing activities.

ASYMECO carries out this activity in its capacity as data controller, as it is the one that determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

For its part, Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data may be considered lawful, while Article 32 of the GDPR regulates the security measures that must be adopted to ensure an adequate level of security in relation to the risk presented by the processing of personal data.

III

Response to the allegations made regarding the initiation agreement and the proposed resolution

A) Regarding the allegations made by ASYMECO to the initiation agreement, the response is provided in the order in which they are presented in their writing:

“FIRST.- We reproduce the content of our previous allegations as they are fully valid and applicable and to avoid unnecessary repetitions.”

Consequently, we proceed to respond to what is included in the response of the respondent party to the initial transfer of the complaint by this Agency:

- “FIRST.” According to ASYMECO, WhatsApp is a work tool and a usual communication channel between the company and the employees, and there was prior consent from the employee to use this communication channel with the company; it is not about their inclusion in a WhatsApp group which would have required their consent, and no communications have been sent outside of working hours.

C/ Jorge Juan, 6

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9/25

laboral, the worker has not been required to contact any client through their mobile device or through a social network; communications with clients are conducted via the company's corporate email and by phone (from the company's phone). At no time has there been any sanction or reproach from the company towards the claimant for not responding to any communication, and finally, the worker's right to disconnection or rest has not been violated. As evidence of all this, ASYMECO states that all workers are witnesses to the aforementioned and that the WhatsApp histories of all workers are available to this body.

In response to all these allegations, it should be noted regarding the infringement of Article 6.1 of the GDPR that ASYMECO has not demonstrated that, once the employment relationship was terminated, it had the consent of the claimant to use their private phone number for the purpose of contacting them.

Regarding the infringement of Article 32 of the GDPR, whether the communications occurred during working hours or not, as well as the existence or non-existence of the claimant's consent, are not determinative of administrative responsibility, since the lack of appropriate security measures on the claimant's private device occurs independently of the time at which the personal data of ASYMECO's clients were sent or whether consent had been granted.

Contrary to what ASYMECO has stated, the messages reproduced in the Established Facts clearly show the claimant's opposition to their private number being used as a regular means of communication with the company, therefore, it cannot be said that “both parties mutually agreed to this communication.”

Regarding the fact that the claimant has not had to use their personal phone as a means of communication with ASYMECO's clients, this circumstance is not raised by the claimant, nor is it considered as an infringement in this procedure. Similarly, the absence of reproach from ASYMECO towards the worker for not responding to any communication must be addressed.

Finally, ASYMECO points out that all workers are witnesses to the aforementioned, but it does not provide, not even a testimony from the other workers, but any document that proves the consent regarding the use of their personal phone granted by the workers prior to the start of the employment relationship.

For all the above reasons, this allegation is dismissed.

- “SECOND.- LONG-STANDING CUSTOM OF THE PROFESSIONAL OFFICE BETWEEN

EMPLOYEES AND EMPLOYER”

In response to this argument, it should be noted that the company's activities involving the processing of personal data must comply with the provisions of the GDPR, therefore, reasons of “economy,” “custom,” or “agility” in communications must be rejected.

For all the above reasons, this allegation is dismissed.

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28001 – Madrid

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10/25

- “THIRD.- THE CLAIMANT ACTS AGAINST THEIR OWN ACTIONS”

The WhatsApp conversations that ASYMECO reproduces in this allegation have already been presented by the claiming party along with the claim (page 5 of the file). From the email “(...)@asymeco.com,” a message was sent to the claiming party instructing them to contact the relevant company officer by phone, and that it was not appropriate to use the corporate email for “personal matters,” when what the claiming party raised were issues related to the delay in the payment of their salary, which can be considered a matter related to the functioning of the company. For all the reasons stated, this allegation is dismissed.

- “FOURTH.- RETALIATION/ CLAIMANT'S EXPOSED MOBILE/ LABOR CONFLICT”

According to ASYMECO, the claim originates from a conflict generated exclusively by the claiming party, and this route is being used by the worker for undoubtedly spurious purposes, providing conversations with the claiming party regarding their professional performance and their working conditions.

From the reading of the facts presented by the claiming party in their claim, as well as the conversations held with ASYMECO during July 2022 and August 2023, it can be observed that the claiming party has made a series of reasoned warnings about the use of an application through which third-party data was sent to a private mobile phone, without knowing the security measures of the device, such as, for example, who may have access to it. The substantiated nature of such facts renders irrelevant the allegation regarding the reasons why the claiming party filed the claim, and issues such as the evaluation of professional performance or the existence of any type of conflict between the company and the worker regarding the latter's working conditions should not be considered. In summary, it can be said that it is not the Agency's role to analyze circumstances that have no relation to the facts subject to this procedure for which the claiming party filed the claim. For all the reasons stated, this allegation is dismissed.

- “FIFTH.- THERE IS NO VIOLATION OF THE DATA PROTECTION LAW”

According to ASYMECO, “No message has been disseminated by the employer because they are the first interested party in the confidentiality of conversations between employees and themselves, unless the claimant has done so, a circumstance we are unaware of. The claimant has suffered no harm.”

In response to this allegation, it should be noted that the initiation agreement duly substantiated the two alleged infringements committed by ASYMECO, neither of which refers to a breach of confidentiality of customer data, but the lack of security measures when sending personal data of ASYMECO's customers to a private device, where it is unknown whether the measures that a corporate electronic device should have are in place, first establishing a security policy, as well as a series of tools, such as user authentication systems, antivirus, firewalls, and the ability to block access to our information.

On the other hand, ASYMECO contacted the claiming party once their employment relationship with ASYMECO had ended, thus lacking the legal basis to consider this processing lawful, as required by Article 6 of the GDPR.

For all the reasons stated, this allegation is dismissed.

“SECOND.- The statements in the resolution issued are erroneous”

ASYMECO states that in the resolution “It is noted that there was no valid employment contract between Asymeco and the claiming party that determines the lawfulness of the processing or the consent to contact them once the employment relationship has ended. Well, a copy of the employment

contract between both parties is attached.”

In response to this argument, it should be pointed out that what is stated in the initiation agreement is that there was no valid (employment) contract between ASYMECO and the claiming party whose execution determined the lawfulness of the processing, as the communication occurred on November 9, 2023, when the employment relationship, according to ASYMECO itself, was terminated on October 10, 2023, due to the voluntary resignation of the claiming party.

For all the reasons stated, this allegation is dismissed.

“THIRD.- The claimant was the one who initially started the communications through their own phone and using the WhatsApp application, as evidenced by the screenshots initially provided by this party.” In response to this allegation, from the messages provided by both the claiming party and ASYMECO, there is no evidence that the claiming party sent personal data of ASYMECO's customers via WhatsApp. On the contrary, from the messages in the file, multiple warnings made by the claiming party to ASYMECO regarding the inconvenience of sharing personal data of the company's customers through the WhatsApp application linked to their private number can be observed.

For all the reasons stated, this allegation is dismissed.

B) Regarding the allegations made by ASYMECO in response to the proposed resolution, it should be noted that they have already been addressed in section A) above, which responds to the issues raised by that entity with.

12/25

on the occasion of the transfer of the claim and in its written allegations regarding the opening of the present procedure.

ASYMECO begins its first allegation by referring to the principle of data minimization (Article 5,1,c of the GDPR), which is not the subject of accusation in the present procedure, and reiterates its previous allegations, which have already been responded to, regarding the non-consensual inclusion in any WhatsApp group, but rather of usual communications that were initiated by the claimant party for their own purposes and used when it became essential to expedite work due to the office being located in a different town from their residence.

As a second allegation, the responding party invokes a precedent followed by the AEPD, marked with the number EXP202002690, in which the proceedings aimed at including the employee in two WhatsApp groups were resolved with a decision to archive. In this regard, it emphasizes that the present case only concerns the transfer to the claimant party of a customer's complaint, being this pertinent information limited to purposes that do not harm the claimant or the customer, since the claimant party, as an employee of the responding party, is obliged to maintain due confidentiality. Thirdly, ASYMECO insists on pointing out that this type of communication to employees' personal phones is a common practice of the company consented to by all of them, to facilitate service and their work, with the minimally necessary data. And it reiterates once again that none of the workers have made any complaint for this reason and are willing to testify that they accepted these communications, which have been used correctly and without disseminating third-party data to their detriment. However, it is deemed appropriate to highlight once again that the present case has nothing to do with the incorporation of the claimant party's personal phone into a WhatsApp group, so the issues analyzed in the precedent that ASYMECO invokes are not similar to those that motivate the infringements now attributed.

On the other hand, it should be clarified that the precedent cited by ASYMECO corresponds to number EXP202105690 and not with the one indicated in its written allegations, previously mentioned.

IV

Legality of the processing

Article 6.1 of the GDPR, "Legality of processing," establishes:

“1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;

- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provisions of point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.

2..."

Also, Recital 40 of the aforementioned GDPR states that "For processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis laid down by law, whether in this Regulation or under other Union or Member State law to which this Regulation applies, including the necessity of complying with a legal obligation to which the controller is subject or the necessity of performing a contract to which the data subject is party or for the purpose of taking steps at the request of the data subject prior to entering into a contract."

On the other hand, Article 4 of the GDPR, Definitions, in its paragraphs 1, 2, and 11, states that:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

"2) 'processing': any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction;

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14/25

11) "consent of the data subject": any manifestation of free, specific, informed, and unequivocal will by which the data subject accepts, either through a declaration or a clear affirmative action, the processing of personal data concerning them."

The claimed facts are specified in the processing by ASYMECO of the data of the complainant, specifically regarding their mobile phone line number, without any of the conditions determining its lawfulness being met, as contact was made to carry out an inquiry related to the accounting management of a client, once the employment relationship had ended. The employee of ASYMECO contacted the complainant through the "WhatsApp" application, as can be seen in the screenshots of the messages in the file (p. 89). In the allegations presented by ASYMECO, there is no analysis of which of the lawful processing grounds set out in Article 6.1 of the GDPR could apply, and it merely indicates that it is a "long-standing custom of the professional office," and reasons of agility and efficiency, which do not justify, in this case, the use of the personal data of the complainant when there was no relationship linking them. Furthermore, it is not established that this subsequent use of personal data had been initially foreseen, that the complainant had been informed about it, and that they had specifically consented to it.

Thus, in this case, once the employment relationship had ended (the employment contract extinguished), there was none of the grounds provided for in the aforementioned Article 6.1 that justified the lawfulness of the processing carried out by ASYMECO.

For all the above, it is determined that there was no (employment) contract in force between ASYMECO and the complainant whose execution determines the lawfulness of the processing, nor

had ASYMECO obtained the consent of the complainant to contact them once the employment relationship had ended, which constitutes a violation of Article 6.1 of the GDPR.

Therefore, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement attributable to ASYMECO for violation of Article 6.1 of the GDPR.

V

Classification and qualification of the infringement

The aforementioned infringement of Article 6.1 of the GDPR constitutes the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total global annual turnover of the previous financial year, opting for the higher amount:

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15/25

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)."

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72 of the LOPDGDD, which qualifies the following conduct as very serious:

1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679 being met.

(...)

VI

Sanction to be imposed for the infringement of Article 6 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the proposed resolution of the sanctioning procedure, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR, which states:

"2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm they have suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the data subjects;

d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have implemented under Articles 25 and 32;

e) any previous infringement committed by the data controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
16/25

- g) the categories of personal data affected by the infringement;
 - h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or the processor notified the infringement and, if so, to what extent;
 - i) when the measures referred to in Article 58(2) have been previously ordered against the controller or the processor in relation to the same matter, the compliance with such measures;
 - j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42;
 - k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”
- In relation to point k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” provides:
- “1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.
2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:
- a) The continued nature of the infringement.
 - b) The connection of the infringer's activity with the processing of personal data.
 - c) The benefits obtained as a result of the commission of the infringement.
 - d) The possibility that the conduct of the affected party could have included the commission of the infringement.
 - e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
 - f) The impact on the rights of minors.
 - g) Having, when not mandatory, a data protection officer.
 - h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

17/25

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the existing evidence, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm they have suffered (paragraph a): the processing of personal data for which the sanction is imposed, resulting from the use of the complainant's personal phone number, took place on a single occasion and with the complainant as the only affected party.

As a circumstance of Article 76.2 of the LOPDGDD, understood in this case as an aggravating circumstance:

- The connection of the infringer's activity with the processing of personal data (paragraph b): ASYMECO, in the development of its professional activity, needs to regularly process personal data, both of its clients and of its own employees, which means that it has sufficient experience and should have the appropriate knowledge for the processing of such data.

The balance of the circumstances considered in Article 83.2 of the GDPR and 76.2 of the LOPDGDD,

regarding the infringement committed by violating the provisions of Article 6.1 of the GDPR, allows for the imposition of a sanction of €2,500 (two thousand five hundred euros).

VII

Security measures

Article 32 of the GDPR, "Security of processing," establishes:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

18/25

2. In evaluating the adequacy of the level of security, particular consideration shall be given to the risks presented by the processing of data, particularly as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to a code of conduct approved pursuant to Article 40 or to a certification mechanism approved pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements established in paragraph 1 of this article.

4. The data controller and the data processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data can only process such data in accordance with the instructions of the controller, unless required to do so by Union or Member State law.

It should be noted that the GDPR in the aforementioned provision does not establish a list of security measures applicable according to the data being processed, but rather states that the controller and the processor shall implement technical and organizational measures that are appropriate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, and the risks of likelihood and severity to the rights and freedoms of data subjects.

Furthermore, the security measures must be adequate and proportionate to the identified risk, indicating that the determination of technical and organizational measures should be made taking into account: pseudonymization and encryption, the ability to ensure confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data following an incident, verification processes (which are not audits), evaluation, and assessment of the effectiveness of the measures. In any case, when evaluating the adequacy of the level of security, particular consideration shall be given to the risks presented by the processing of data, as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data that could cause physical, material, or immaterial harm.

In this same sense, Recital 83 of the GDPR states that:

"(83) In order to maintain security and prevent processing from infringing the provisions of this Regulation, the controller or the processor must assess the risks inherent in the processing and implement measures to mitigate them, such as encryption. These measures must ensure an adequate

level of security, including confidentiality, taking into account the state of the art and the cost of their implementation in relation to the risks and the nature of the personal data to be processed.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

19/25

to protect itself. When assessing the risk in relation to data security, the risks arising from the processing of personal data must be taken into account, such as the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data, which may particularly cause physical, material, or immaterial harm.

Recital 75 of the GDPR lists a series of factors or assumptions associated with risks to the guarantees of the rights and freedoms of data subjects:

“The risks to the rights and freedoms of natural persons, of varying severity and probability, may arise from the processing of data that could cause physical, material, or immaterial harm, particularly in cases where the processing could lead to issues of discrimination, identity theft or fraud, financial losses, damage to reputation, loss of confidentiality of data subject to professional secrecy, unauthorized reversal of pseudonymization, or any other significant economic or social detriment; in cases where data subjects are deprived of their rights and freedoms or prevented from exercising control over their personal data; in cases where the personal data processed reveal ethnic or racial origin, political opinions, religion or philosophical beliefs, trade union membership, and the processing of genetic data, data concerning health or data about sexual life, or criminal convictions and related security measures; in cases where personal aspects are evaluated, in particular the analysis or prediction of aspects related to work performance, economic situation, health, personal preferences or interests, reliability or behavior, situation or movements, in order to create or use personal profiles; in cases where personal data of vulnerable individuals, particularly children, are processed; or in cases where the processing involves a large amount of personal data and affects a large number of data subjects.”

The responsibility of ASYMECO is determined by the lack of appropriate security measures, as it is responsible for making decisions aimed at effectively implementing appropriate technical and organizational measures to ensure a level of security appropriate to the risk, in order to ensure that the personal data of its clients is not accessible to unauthorized third parties.

In this regard, Recital 74 of the GDPR establishes that:

“The responsibility of the data controller must be established for any processing of personal data carried out by him or on his behalf. In particular, the controller must be obliged to apply appropriate and effective measures and must be able to demonstrate compliance of the processing activities with this Regulation, including the effectiveness of the measures. Such measures must take into account the nature, scope, context, and purposes of the processing, as well as the risk to the rights and freedoms of natural persons.”

In the case examined, it cannot be appreciated that the data controller (ASYMECO) has applied appropriate technical and organizational measures to ensure a level of security appropriate to the risk, particularly regarding the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

20/25

The ability to guarantee confidentiality refers, in relation to the personal data of its clients, to the fact that it has been sent via the WhatsApp application to the private mobile phone of one of its employees, as evidenced in the Established Facts, where the integrity and confidentiality of the data in question are not guaranteed, since personnel outside of the organization can have habitual access to it. Furthermore, the security configuration of the device is unknown to ASYMECO, which cannot

guarantee in any way that such configuration is the most appropriate.

Therefore, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement attributable to ASYMECO for violation of Article 32 of the GDPR.

VIII

Typification and qualification of the infringement

The aforementioned infringement of Article 32 of the GDPR constitutes the commission of the infringements typified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)"

For the purposes of the statute of limitations for infringements, the imputed infringement prescribes after two years, in accordance with Article 73.f) of the LOPDGDD, which qualifies the following conduct as serious:

"According to what is established in Article 83.4 of Regulation (EU) 2016/679, the following infringements are considered serious and shall prescribe after two years, which involve a substantial violation of the articles mentioned therein and, in particular, the following: (...)

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of processing, in the terms required by Article 32.1 of Regulation (EU) 2016/679.

IX

Sanction to be imposed for the infringement of Article 32 of the GDPR

For the purposes of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR, which indicates:

"2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm they have suffered;
- b) the intent or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have applied under Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42,
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

As a circumstance of Article 83.2 of the LOPDGDD, understood in this case as a circumstance to determine the severity of the infringement:

- The intent or negligence in the infringement (paragraph b): the actions of the respondent must be classified as gross negligence considering that the claimant repeatedly warned ASYMECO that it should not send client data to its

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

22/25

private phone. The following notices made by the claimant are recorded in the file:

1.- Message dated 29/06/2022 (page 12).

2.- Email dated 22/07/2022 (page 1).

3.- Message dated 09/12/2022 (page 5).

4.- Message dated 28/04/2023 (page 14).

Regarding letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," states:

"1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party could have included the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party."

As a circumstance of Article 76.2 of the LOPDGDD, understood in this case as an aggravating factor:

- The connection of the infringer's activity with the processing of personal data (paragraph b):

ASYMECO, in the development of its professional activity, needs to regularly process personal data, both of its clients and of these workers, which means that it has sufficient experience and should have appropriate security measures.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 32 of the GDPR, allows for the imposition of a fine of €2,500 (two thousand five hundred euros).

X

Imposition of measures

In accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...", ASYMECO is required to provide this Agency with proof of the adoption of the following measures within 3 months:

- To prevent contact with former employees of ASYMECO without complying with the provisions of Article 6.1 of the GDPR, as detailed in this resolution.

- To adopt the technical and organizational measures to ensure the security of its clients' data, so that their personal data cannot be sent to private devices of ASYMECO employees without meeting the requirements set forth in the GDPR and the LOPDGDD.

The imposition of these measures is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on ASYMECO, S.A., with NIF A16018269:

- For an infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €2,500 (two thousand five hundred euros).

- For an infringement of Article 32 of the GDPR, classified under Article 83.4 of the GDPR, a fine of €2,500 (two thousand five hundred euros).

SECOND: TO ORDER ASYMECO, S.A., with NIF A16018269, that pursuant to Article 58.2.d) of the GDPR, within 3 months from the date this resolution becomes final and enforceable, to provide proof of having complied with the following measures:

- To prevent contact with former employees of ASYMECO without complying with the provisions of Article 6.1 of the GDPR, as detailed in this proposal.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

24/25

- Adopt the technical and organizational measures to ensure the security of the data of its clients, so that their personal data cannot be sent to private devices of ASYMECO employees without complying with the requirements set forth in the GDPR and the LOPDGDD.

THIRD: NOTIFY this resolution to ASYMECO, S.A.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of art. 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in art. 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to art. 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National

Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in art. 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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